IN THE SUPREME COURT OF IOWA
No. 24-1108
Linn County No. FECR 149137

STATE OF IOWA,
Plaintiff-Appellee,

v.

DUVAL TREMONT WALKER, JR
Defendant-Appellant

APPEAL FROM THE LINN COUNTY DISTRICT COURT
THE HONORABLE KEVIN MCKEEVER

APPELLANT'S BRIEF AND REQUEST FOR ORAL ARGUMENT

Kent A. Simmons
P.O. Box 594
Bettendorf, Iowa 52722
(563) 322-7784
ttswlaw@gmail.com

CERTIFICATE OF COMPLIANCE

1. This brief complies with the type-volume limitation of Iowa R. App. P. 6.903(1)(g)(1) or (2) because:

- this brief contains 10, 944 words, excluding the parts of the brief exempted by Iowa R. App. P. 6.903.

2. This brief complies with the typeface requirements of Iowa R. App. P. 6.903(1)(e) and the type-style requirements of Iowa R. App. P. 6.903(1)(f) because:

- this brief has been prepared in a proportionally spaced typeface based on Word 14 in Times New Roman font.

/s/ Kent A. Simmons

KENT A. SIMMONS

TABLE OF CONTENTS

Certificate of Compliance 2

Statement of Issues for Review 6

Routing Statement 6

Nature of the Case 6

Statement of the Facts 7

Argument 11

I. THE DISTRICT COURT ERRED IN DENYING THE DEFENSE MOTIONS TO STRIKE TWO PROSPECTIVE JURORS FOR CAUSE, AND THE ERROR WAS PROPERLY PRESERVED IN ORDER TO REVIEW THE RULINGS UNDER PRESUMPTION OF PREJUDICE. 11

The Merits 16

II. THE TRIAL COURT ERRED BY REFUSING TO SUBMIT A PROPOSED JURY INSTRUCTION THAT WAS SUPPORTED BY COMMON LAW AND WAS NOT EXPLAINED IN OTHER INSTRUCTIONS, AND THE INSTRUCTION WAS REQUIRED TO BE SUBMITTED. 32

The Merits 36

Conclusion 46

Request for Oral Argument 46

TABLE OF AUTHORITIES

Cases

In Re: Christian S., 872 P.2d 574 (Cal. 1994) 32, 38, 45

State v. Beckwith, 46 N.W. 2d 20 (Iowa 1951) 16, 17, 19, 20, 24, 31

State v. Benson, 919 N.W.2d 237 (Iowa 2017) 36

State v. Cusic, 2017 WL 1278293 (Iowa App. 2017) 32, 39, 41, 42

Gomez-Rodriguez, 2007 WL 1688987 (Iowa App. 2007) 42, 44, 45

State v. Gordon, 921 N.W.2d 19, 24 (Iowa 2010) 15

State v. Irving, 2015 WL 5965171 (Iowa App. 2015) 45

State v. Jonas, 904 N.W.2d 566 (Iowa 2017) 15, 16, 21, 22, 23, 24, 31

State v. Lawrence, 38 Iowa 51 (1873) 18, 19

State v. McVey, 376 N.W.2d 585 (Iowa 1985) 43

State v. Neuendorf, 509 N.W. 2d 743 (Iowa 1993) 21

State v. Paredes, 775 N.W.2d 554, 561 (Iowa 2009) 35

State v. Plain, 898 N.W.2d 801 (Iowa 2017) 36, 46

Rinehart v. Brewer, 561 F.2d 126 (8th Cir. 1977) 32, 34, 44

State v. Williams, 695 N.W.2d 23 (Iowa 2005) 35

Code of Iowa

Sections 704.1 through 704.2(b) and 1.704.4 37

Section 704.3 .....36, 42, 45

Section 707.1 .....7, 38

Iowa Rules of Criminal Procedure

Rule 2.18(5) 15, 17

Iowa Rules of Evidence

Rules 5.402, 5.403, and 5.404(a) and (b) 26

Rule 5.403 30

STATEMENT OF ISSUES FOR REVIEW

I. WHETHER THE DISTRICT COURT ERRED IN DENYING THE DEFENSE MOTIONS TO STRIKE TWO PROSPECTIVE JURORS FOR CAUSE AND THE ERROR WAS PROPERLY PRESERVED IN ORDER TO REVIEW THE RULINGS UNDER PRESUMPTION OF PREJUDICE.

II. WHETHER THE TRIAL COURT ERRED BY REFUSING TO SUBMIT A PROPOSED JURY INSTRUCTION THAT WAS SUPPORTED BY COMMON LAW AND WAS NOT EXPLAINED IN OTHER INSTRUCTIONS, AND THE INSTRUCTION WAS REQUIRED TO BE SUBMITTED.

ROUTING STATEMENT

The Supreme Court should retain this appeal because it presents an issue of first impression as to whether the Court should approve and adopt the common law Imperfect Self-Defense Doctrine. This Court has had previous opportunities to recognize or reject the Doctrine, but has never given any indication of its approval or disapproval.

NATURE OF THE CASE

Duval T. Walker, Jr. takes this direct appeal from two convictions resulting from verdicts of guilty after a jury trial. The Linn County Attorney charged three offenses against Mr. Walker by Trial Information filed May 3, 2023. Count 1

charged Murder in the First Degree, a Class A Felony, in violation of Sections 707.1, 707.2(1)(a) of the Code of Iowa. The charge in Count 2 was Felon in Possession of a Firearm, a class D felony, in violation of Section 724.26(1), the Code. The third count was Going Armed with Intent, also a class D felony in violation of Section 708.8, the Code. Defendant does not challenge the Felon in Possession charges, to which he pled guilty. (D0013, 5/3/24, Trial Information) (D0307, 7/5/24, Judgment and Sentence)

A jury trial was set for March 5, 2024. On February 11, 2024, the defense filed a proposed jury instruction and asked the trial court to submit the instruction to the jury for a special defense provided by the Imperfect Self-Defense Doctrine. During the jury selection process, the defense made two Motions to Strike for Cause in regard to prospective jurors who reported their exposure to media coverage of the case. The Honorable Kevin McKeever presided over the trial. The judge denied the two Motions to Strike for Cause, and he denied the requested submission of the special defense instruction to the jury. Those rulings are challenged in the instant appeal. (D0184, 2/11/24, Proposed Instructions, p. 47)

Statement of the Facts

On the evening of March 17, 2017, Duval Walker was celebrating St. Patrick's Day with several friends at Cocktails and Company [hereafter

"Cocktails"], a restaurant and tavern in Marion. At a little before 11 p.m., Mr. Walker noticed that a man named Cameron Barnes had arrived in the tavern. Barnes had threatened Mr. Walker and his girlfriend, Alexandra, a little over a year previously. Alexandra was the mother of Mr. Walker's children. Alexandria had been in an ongoing dispute with Barnes's girlfriend, and Barnes interjected into that dispute. He was sending unwanted text messages to Alexandra's phone. Then, he was trying to get in contact with Mr. Walker. After a month or so of this annoyance, Alexandra was driving in a business area of Cedar Rapids, and Mr. Walker was her passenger. Barnes pulled up next to them while they were stopped at a traffic light. His car had been following Alexandra's. She testified that at the stoplight, "He pulled up on the side of my car and was motioning for me to roll my window down . . . [by] waiving his firearm." Alexandra testified that both she and Mr. Walker were scared. She immediately dialed 911 from her car, and then drove to her residence (D0332, 8/27/24, Trial Tr. Vol. 5, pp. 173-179, L. 13-5)

A police officer from the Cedar Rapids Police Department (CRPD) testified for the defense. Officer Kephart testified that she responded to Alexandra's 911 call on February 5, 2022. Alexandra reported her account of Barnes brandishing a firearm for the officer. While she was still with Alexandra, Officer Kephart saw Cameron Barnes drive past Alexandra's home. The driver turned and looked directly at Officer Kephart. The officer testified she "was able to positively identify

that it was Barnes". Alexandra wanted criminal charges filed against Barnes "before things got out of hand". (D0332, 8/27/24, Trial Tr. Vol. 5, pp. 37-38, L. 12-18, pp. 189-191, L. 13-10)

Video surveillance cameras showed that after Barnes entered Cocktails on the night of March 17, 2023, Duval Walker began keeping an eye on where Barnes was going, as he moved through the tavern. Eventually, Duval encountered Barnes next to a pool table in the pool room. After some words were exchanged, Duval did strike Barnes once in the face. Barnes and his friend then began pummeling Duval and knocked him to the floor. Several people were then ganging up on Duval. A friend of Duval's jumped into the fray, and a general brawl broke out in the crowded tavern. One of the bouncers, Marcus Johnson, testified: "It was a – a lot of commotion going on, people yelling and screaming, individuals jumping on the pool table." (D0329, 8/27/24, Trial Tr. Vol. 3, pp. 97-101, L. 14-22) (D0323, 8/27/24, Trial Tr. Vol. 4, pp. 93-110, L. 6-12)

The bouncers eventually got Barnes separated from Mr. Walker and were attempting to escort Barnes out of the tavern. Mr. Johnson testified he was 5' 11" and "pushing 300 pounds" He was the biggest bouncer on duty that night. He put Barnes in "a kind of bear hug" He was verbally trying to calm Barnes down and move him out of the tavern. Johnson believed he had a secure hold on Barnes, but Barnes was able to pull away and tried to re-engage in the altercation with Duval,

trying “to get back to fighting”. Mr. Johnson said it was just a second later that he heard a gunshot ring out. Video surveillance cameras recorded events in the tavern throughout the entire time that Duval and Barnes were both there and in the parking lot outside afterward. In regard to the videos, the parties stipulated that the individual wearing a black and green coat with orange stripes on the sleeves was Mr. Walker. The prosecutor read the stipulation to the jury at the close of the State’s case-in-chief. The videos showed Mr. Walker was the person who shot Cameron Barnes. (D0329, Tr. Vol. 3, pp. 100-103, L.3-25, pp. 126-132, L. 11-14) (D0332, Tr. Vol. 5, p. 171, L. 11-21) (D0242, 3/11/24, Stipulation)

A former employee of Cocktails, Elliott Rowray, was at the tavern as a customer that night. He was near the pool room and the front door of the tavern. He saw a broken piece of a pool cue come flying out of the pool room when the fight started, and then the “scuffle” went past him. Rowray saw Marcus Johnson escorting Barnes to the front door. Barnes was in between the front door and the shooter at that point, and they were both right in the front door area. Rowray then saw the shooter, and it looked to him like the shot was fired just so the shooter could get out the door. After the shot was fired patrons suddenly rushed out the front door in a mass exodus. The front door is the only door that patrons can use. (D0329, Tr. Vol. 3, pp. 169-171, L. 6-5, pp. 171-172, L. 24-23, pp. 180-182, L.6-18)

Video showed that after Duval and Barnes were separated in the pool room, there had been a handgun laying on the floor at the spot where they had been fighting. The video showed Duval going to the spot and picking up the gun after he and Barnes had been separated. It was never determined who had brought the gun into the tavern or how it had fallen onto the floor. (D0323, 8/27/24, Trial Tr. Vol. 4, pp. 104-109, L. 14-24) (D0332, 8/27/24, Trial Tr. Vol. 5, pp. 38-40, L. 23-10)

ARGUMENT

I. THE DISTRICT COURT ERRED IN DENYING THE DEFENSE MOTIONS TO STRIKE TWO PROSPECTIVE JURORS FOR CAUSE, AND THE ERROR WAS PROPERLY PRESERVED IN ORDER TO REVIEW THE RULINGS UNDER PRESUMPTION OF PREJUDICE.

Preservation of Error: During jury selection proceedings, defense counsel lodged motions to strike regarding three potential jurors. One of the three, Frazier, was eventually removed by the State in a peremptory strike. No prejudice resulted from the denial of that defense motion. (D0325, 8/27/24, Tr. Vol. 2, p. 122, L. 10-23) (D0216, 3/7/24, Jury Strike List, p. 1)

On the first morning of jury selection proceedings, Judge McKeever asked the panel of thirty-four prospective jurors if any of them had heard anything about the instant case before they came in for jury duty. Juror Wilson raised her hand and was examined by the attorneys separately, in chambers. She stated: “It was

basically all over the news. A person was killed in an altercation in a crowded bar." Ms. Wilson said she did not remember further details about the reports, but her fear was that something during the trial would jog her memory, and then she would recall all the details from what she had heard in media reports. She said that her memory works that way when she starts to read a book or watch a movie for a second time. She said "the moment I start getting into it, I start remembering everything". That happens when she intentionally takes a second look at a story, and it even happens when she thinks she has not read or seen the story before. She said as facts begin to come out, "then you start remembering all the things about it". The details then come flooding back to her. She was asked by the prosecutor and defense counsel whether, if that did happen in this case, she could separate what she heard in the media and what she will hear from the witness stand. The question was whether she could be fair and impartial in that circumstance. Ms. Wilson could not be certain about that. The best she could say was that she would hope so. Ms. Wilson concluded by saying she was not sure she could make a decision based only on the evidence and not by what she had heard out of court. "I'm not going to lie and say that." (D0324, 8/27/24, Trial Tr. Vol. 1, pp. 115-125, L. 7-9)

On the second morning of jury selection, the judge again asked the panel if anyone had heard or seen any news reports. Those who raised their hands were

then heard in voir dire separately in chambers. One prospective juror, Schurtz, stated that he had accidentally heard a radio report that morning saying Mr. Walker had "plea bargained" on one charge and he was now facing the murder charge at trial. He recalled the report as saying he pled guilty to "carrying weapons". After extensive questioning, Schurtz stated he did not think he could be fair and impartial at that point. The prosecutor moved to strike and the motion was granted. (D0325, Tr. Vol. 2, pp. 25-28, L. 16-17)

In regard to Juror Lucore, the defense moved to strike on the basis that the juror had seen a headline in a news report the day before his jury voir dire on the second morning of trial. The prospective juror read that Mr. Walker had pled guilty to "Felon in Possession of a Weapon". In the instant case, the defense had previously lodged a Motion in Limine that was granted to exclude any reference to Mr. Walker's criminal history. The motion had been granted before jury selection commenced. The defense Motion to Strike was based on the fact the juror had been exposed to prejudicial information that had been excluded from evidence. The Motion to Strike was overruled on the basis Lucore stated he would not share his improper knowledge with other jurors, and he could separate his knowledge of the guilty plea in reaching a verdict on the murder charge. He said he could be fair and impartial. (D0325, Tr. Vol. 2, pp. 37-40, L. 1-13, pp. 41-45, L. 13-1)

After the jury selection was completed, the jury retired, and Judge McKeever made a record with counsel. The judge noted there had been a bench conference before jury selection concluded wherein defense counsel requested two additional peremptory strikes. Judge McKeever recounted that bench conference in this way:

> Well, first of all, I guess the argument would be that the challenge for cause should have been granted, but secondly, since it wasn't, that the two jurors that were challenged for cause – since that was denied, in the alternative that the Court should award two additional strikes. The Court denied both motions.

(D0325, 8/27/24, Trial Tr. Vol. 2, p. 203-204, L. 20-12)

Defense counsel then restated the particulars of the request for additional strikes. Because the judge denied the Motion to Strike for Cause on Lucore and Wilson, the defense was forced to use peremptory strikes on those two. The Jury List shows those two peremptory strikes were numbered 2 and 3 for the defense. Counsel then stated the names of two jurors who were finally seated on the jury for whom the defense would have struck if given additional peremptory strikes. (D0325, 8/27/24, Trial Tr. Vol. 2, p. 205, L. 8-23) (D0216, 3/7/24, Jury Strike List, p. 3)

Standard of Review: When a defendant's Motion to Strike for Cause is overruled in the course of jury selection, this Court will review the judge's ruling

for abuse of discretion. "The district court is vested with broad discretion in such rulings." *State v. Jonas*, 904 N.W.2d 566,570-571 (Iowa 2017) "We will find an abuse of discretion when 'the district court exercises its discretion on grounds or for reasons that were clearly untenable or unreasonable." A ruling is untenable when the court bases it on an erroneous application of law. *State v. Gordon*, 921 N.W.2d 19, 24 (Iowa 2010)

Where error is found, the question of prejudice is analyzed either for actual prejudice or under a presumption of prejudice that requires automatic reversal of the conviction. The analysis proceeds according to whether trial counsel requested an additional peremptory strike for each juror counsel had moved to to strike for cause. On each request for an additional peremptory strike, the trial attorney must inform the judge the defense was forced to use a peremptory strike to remove the particular potential juror for whom the motion to strike was denied. Then, the defense must identify the sitting juror that would have been struck if the defense had been granted an additional peremptory strike.

> Specifically, in order to show prejudice when the district court improperly refuses to disqualify a potential juror under Iowa Rule of Criminal Procedure 2.18(5)(k) and thereby causes a defendant to expend a peremptory challenge under rule 2.18(9), the defendant must specifically ask the court for an additional strike of a particular juror after his peremptory challenges have been exhausted. Where the defendant makes such a showing, prejudice will then be presumed. *Jonas*, 904 N.W.2d at 583

Because defense trial counsel in the instant case complied with the preservation of error process required by Jonas, a finding of abuse of discretion would be treated with a presumption of prejudice and result in an automatic reversal for a new trial.

The Merits

Analysis of the case law must begin with the Court's caution to trial judges expressed in *Jonas* :

> While we have generally reviewed disqualification of jurors deferentially, we have long cautioned trial courts against allowing close issues to creep into the record and threaten the validity of a criminal trial. In *State v. Teale*, we stated, "[W]e see no occasion in the ordinary administration of the criminal law in this state for the close rulings on the qualifications of jurors that are constantly brought to our attention. Although a ruling may be technically right, if it must be so doubtful as to raise a fair question as to its correctness, it is far better to give the accused the benefit of the doubt, to the end that he and all other men may be satisfied that his rights have not been invaded." 154 Iowa 677, 682, 135 N.W. 408, 410 (1912).We cited the above language with approval in *Beckwith*, 242 Iowa at 238–39, 46 N.W. 2d at 26. In *Beckwith*, we further added that with the high level of literacy and intelligence existing among the citizens of Iowa, "it should not be necessary for trial courts to skirt the brink of error in the selection of trial jurors." *Id.* at 239, 46 N.W.2d at 26. We repeated the admonition in *State v. Williams*, 285 N.W.2d 248, 267 (Iowa 1979). We again endorse it today.
> *Jonas*, 904 N.W.2d at 575

In the instant case, the defense attorney referred the judge to the caution expressed by this Court in *Beckwith* in regard to the first Motion to Strike for

Cause directed to Juror Wilson: " Under *Beckwith* . . . it's 45 N.W.2d at page 26. However, the Supreme Court in *Beckwith* said that trial courts should use the utmost caution in overruling challenges for cause in criminal cases when there appears to be a fair question as to the soundness." (D0324, Tr. Vol. 1, p. 123, L. 20-25) *State v. Beckwith*, 46 N.W. 2d 20, 23 (Iowa 1951)

Challenges to individual potential jurors for cause are governed by Iowa Rule of Criminal Procedure 2.18(5). In regard to the instant action, two subparagraphs under that rule can be applied to the analysis of the circumstances of the potential jurors who were the subject of the motions to strike for cause:

> A challenge for cause of an individual juror may be made orally by the State or the defendant and must distinctly specify the facts constituting the cause. A challenge may be made on an individual juror for any of the following causes:
> ****
> k. Having formed or expressed such an opinion as to the guilt or innocence of the defendant as would prevent the juror from rendering a true verdict upon the evidence submitted on the trial.
> ****
> o. Where the circumstances indicate the juror would have an actual bias for or against a party.

Over 150 years ago, case law was developed that established that a potential juror's exposure to news accounts related to a criminal case did not necessarily establish actual bias. In an 1873 decision, this Court approved the denial of a

Motion to Strike for Cause where a potential juror had stated this opinion in voir dire :

> I have heard of the transaction of the killing of Anton Bauerback, at the time it happened, and read the newspaper account of it, the channels of information through which it reached me. I believed the man had been murdered, and that the defendant did it. It would now take some evidence or explanation to remove the opinion from my mind. I have no bias upon my mind for or against the defendant. I know nothing about the case except what I have heard from rumor and newspaper prints. I have no personal knowledge of the facts otherwise, and I believe that I can sit and decide the case with the same impartiality, as if I had never heard of the case.
> *State v. Lawrence*, 38 Iowa 51, 54 (1873)

There is no discussion in *Lawrence* about the presumption of innocence, the burden of proof or the rule that a juror's decision must be reached only upon the evidence that is adduced in the courtroom. The Court simply took the view that potential jurors who are educated and aware in the modern world of 1873 will naturally be informed of such "startling" events like a murder charge via the newspapers. The fact a potential juror gained knowledge of the event before trial in that way cannot be cause for dismissal because such a rule would " practically exclude every intelligent man from the jury". *Id.*

Ignoring the potential juror's expression of an opinion of guilt that he stated he would use in his deliberation with the facts in evidence, the Court affirmed the denial of the strike for cause by focusing on the juror's character. The juror had

stated on voir dire that he believed a man had been murdered and the defendant did it. The expression of the juror's pre-existing opinion of guilt and intent to use that opinion during trial was perfectly clear. Nonetheless, the *Lawrence* court rationalized the denial of the strike in this way:

> The law does not require that a juror shall be without opinion respecting a case. "A challenge for implied bias may be taken for any of the following causes: * * * * * * Having formed or expressed an unqualified opinion or belief, that the prisoner is guilty or not guilty of the offense charged." Revision, § 4771, sub-division 8. The juror stated that he had not formed such opinion. His further examination does not show that he had formed such opinion. He was therefore a competent juror. Any rule rendering him incompetent would be found utterly impracticable. *Id.* at 55.

Almost eighty years later, the Court abrogated *Lawrence* in the *Beckwith* decision. The Court acknowledged the *Lawrence* explanation of the media attention that will pervade when a murder case "startles and attracts the public mind". But, *Beckwith* explained the fact that the influence of media attention is to be expected is not the point. The critical question is whether the potential juror can "give both the state and the defendant the benefit of their impartial consideration of the evidence" introduced at trial. In that regard, a juror's impartiality cannot be assured by the use of warnings to the juror from the bench or counsel that fairness and impartiality is their duty, when that warning then prompts the juror's agreement to abide by the duty. *Beckwith*, 46 N.W. 2d at 236-238

From there, the Court made the statement that was relayed to Judge McKeever with the Motion to Strike for Cause the defense first made in respect to Juror Wilson in the instant case:

> Although a ruling may be technically right, if it must be so doubtful as to raise a fair question as to its correctness, it is far better to give the accused the benefit of the doubt, to the end that he and all other men may be satisfied that his rights have not been invaded. Confidence in the fairness and impartiality of each member of a jury, which shall be sworn to try a man on a charge involving his life or liberty, is of the greatest importance to the welfare of the state. Indeed, it is of such paramount importance to every citizen that the time and expense necessary to secure jurors as to whom no doubt may rightly exist is an insignificant consideration.'
> *Beckwith*, 46 N.W. 2d at 238-239

A. Potential Juror Wilson: As stated in the Preservation of Error, above, Ms. Wilson brought to the trial judge and counsel her concern that as facts or statements would begin to be revealed after trial commenced, the details of things she heard in the media would all resurface in her memory. During voir dire, Ms. Wilson was not remembering specific facts about Mr. Walker's case, but she did remember that it was "basically all over the news" when it happened almost a year before. When she starts getting into the facts of the matter is when the problem arises. As she put it, "the moment I start getting into it, I start remembering everything". She could not tell the judge and counsel that things she heard outside of court would not enter into her decision-making process as a juror. Specifically

and flatly, Ms. Wilson said, "I'm not going to lie and say that." (D0324, 8/27/24, Trial Tr. Vol. 1, pp. 115-119, L. 16-16)

This response is indistinguishable from another case where a potential juror disclosed in voir dire that she had learned about the case on trial from media reports. In response to the judge's question as to whether she could still be fair and impartial, the juror could only say, "I will try." The denial of the Motion to Strike in that case was held to be an abuse of discretion, and the *Jonas* court upheld that conclusion. *Jonas*, 904 N.W.2d at 574-575, citing *State v. Neuendorf*, 509 N.W. 2d 743, 745-746 (Iowa 1993) Ms. Wilson was even more insistent that she could not promise she would be fair and impartial. She said that type of statement would be a "lie".

After that, the judge wanted to hear a more specific question and answer, but when asked if she could reach a decision based only on what she heard in the courtroom, and not from the media, she could only say, "I would think so." That answer is no different than "I will try". Both are speculative and the juror was only hoping she could be fair, not saying she would be. (D0324, Tr. Vol. 1, p. 124, L. 6-19)

The questioning and the direction the judge gave counsel after extended dialogue between the attorneys and the juror harken back to the *Jonas* court's

discussion of the invalidity of the "magic question". The judge's reasoning in denying the Motion to Strike is capsulized in this pronouncement:

> THE COURT: I – I understand that – the challenge, but I'm going to overrule the motion. When asked directly whether she would abide by the rules, she said that she thinks that she would be able to do that, and that's all I can – we can ask for people is to give us their best estimate as to what they'll be able to do if they're faced with that choice, and she thinks she can follow the rules. So I'm going to overrule the motion.
>
> (D0324, Tr. Vol. 1, pp. 124-125, L. 25-8)

In the presence of Ms. Wilson, the defense attorney and the judge had this exchange right before the magic question was asked:

> DEFENSE COUNSEL: In this case, Your Honor, our fear is that if Ms. Wilson starts to remember something, that she could remember something that is not brought in on these facts in question, and therefore, she may make a decision based on that.
> THE COURT: And – and to be fair, I don't think anyone has explained yet that one of the requirements of her is that if she's selected as a juror, she has to agree to decide the evidence in the courtroom versus the evidence – or any other information. I haven't heard anyone ask that specific question motion.
>
> (D0324, Tr. Vol. 1, p. 124, L. 1-12) (emphasis added)

In *Jonas*, this Court warned trial judges against use or reliance upon a question that suggests the "proper answer" to a question as to whether the juror would be able fairly assess the evidence introduced in the courtroom:

> In a similar vein, courts have cautioned that judicial rehabilitation should not become a "stark little exercise," *State v. Saunders*, 992

> P.2d 951, 962 (Utah 1999) (quoting *State v. Worthen*, 765 P.2d 839, 845 (Utah 1988)), because "determinations of juror bias cannot be reduced to question-and-answer sessions which obtain results in the manner of a catechism," *Wainwright v. Witt*, 469 U.S. 412, 424, 105 S.Ct. 844, 852, 83 L.Ed.2d 841 (1985). A Kentucky court has declared "[o]ne of the myths" of jury selection is that an answer to a "magic question" posed by the court results in juror rehabilitation sufficient to eliminate bias. *Montgomery v. Commonwealth*, 819 S.W.2d 713, 717 (Ky. 1991). A justice on the Supreme Court of Colorado has suggested judicial rehabilitation by "leading questions and thorough interrogation" designed to "give the answers desired by the state to qualify [the juror]" may amount to judicial advocacy. See *Leick v. People*, 136 Colo. 535, 322 P.2d 674, 693 (1958) (en banc) (Sutton, J., dissenting). A Mississippi court has observed when the trial court engages in questioning a juror,[c]are should be taken that the nuances imbedded in the judges' questions do not suggest that there is only one proper answer, and that questions are asked in a way that would not cause one, from fear or embarrassment, to give anything less than frank, honest answers. *Bell v. State*, 725 So. 2d 836, 845 (Miss. 1998). *Jonas*, 904 N.W.2d at 572

In the instant case, Ms. Wilson heard Judge McKeever frame the magic question with the suggested proper answer embedded. She then heard defense counsel repeat the question to her. The judge made it clear to everyone that counsel had to get an answer to this question if she wanted to get a ruling on her motion. But, even in the face of the magic question, against any fear of embarrassment, Ms. Wilson still could not affirmatively say that she would be able to reach her decision on guilt or innocence based only on evidence in the courtroom, as opposed to facts she could well remember from media accounts that were "all over the newspapers". The best she could say is, "I would think so." The judge's

conclusion that Ms. Wilson said "she thinks she can follow the rules" is plainly at odds with the entirety of Ms. Wilson's voir dire examination. The bottom line is that the prospective juror said she would try to follow the rules, but she could not promise that she would not use the out-of-court information she had heard.

The trial judge abused discretion in overruling the Motion to Strike the potential juror, Wilson. The judge misapplied the case law by participating in the questioning of the juror and providing the magic question with the correct or proper answer embedded. The judge also erred by failing to rule on the side of caution as directed by *Beckwith* and *Jonas*. His ruling was also untenable and unreasonable because the juror never stated that she was positive she could be fair and impartial. With the application of the presumption of prejudice that was properly preserved, the Court must reverse the convictions for a new trial.

B. Potential Juror Lucore: The motion regarding Mr. Lucore presents an abuse of discretion where the potential juror's exposure to a media account informed him of Mr. Walker's plea of guilty to one of the three counts charged in the Trial Information that was on trial in the instant case. As stated in his in-chambers voir dire, Mr. Lucore reported that a headline had "popped up" on his Google News after the first day of jury selection. The headline from a local television station said that Mr. Walker had pled guilty to Felon in Possession of a

Weapon. He had not read the article, just the headline. The examination started this way:

> PROSECUTOR: And do you recall the specifics of what you read of the headline?
> POTENTIAL JUROR LUCORE: It said he was a Felon in Possession of a Weapon and pled guilty to it.
> PROSECUTOR: Okay. Having read that headline, do you have an opinion as to whether or not Mr. Walker's guilty or not guilty of the charges that the State will be presenting?
> POTENTIAL JUROR LUCORE: No. I mean, one can happen without the – one can be true without the other.
> PROSECUTOR: Okay. So you can set aside what you've previously read?
> POTENTIAL JUROR LUCORE: Yes.
> ****
> PROSECUTOR: And do you think you would be able to form a verdict solely on the evidence in the courtroom and be able to set aside what you've previously read about this case?
> POTENTIAL JUROR LUCORE: Yes.
> PROSECUTOR: And do you think that at this point in time, you still would be fair and impartial to both the State and Mr. Walker?
> POTENTIAL JUROR LUCORE: Yes.
> PROSECUTOR: And do you think you would be able to form a verdict solely on the evidence in the courtroom and be able to set aside what you've previously read about this case?
> POTENTIAL JUROR LUCORE: Yes.
> PROSECUTOR: And do you think that at this point in time, you still would be fair and impartial to both the State and Mr. Walker?
> POTENTIAL JUROR LUCORE: Yes.

(D0325, 8/27/24, Trial Tr. Vol. 2, pp. 37-38, L. 10-10)

This Motion to Strike for Cause presents a unique situation in these procedural and evidentiary circumstances. Unlike Juror Wilson, the responses of

potential Juror Lucore were unwavering in his confidence that he could be fair and impartial in the process of reaching a verdict. He believed that Mr. Walker could be guilty of one offense, but not another. Lucore believed he could reach a decision solely on the evidence presented in the courtroom and be able to set aside what he had previously heard about the instant case. The error here is not based solely on an interpretation of the facts the juror presented, but also results from the trial judge's erroneous application of law.

Over six months before trial, the defense had filed its first Motion in Limine. The motion first stated a common approach for the exclusion of any evidence or comment as to Mr. Walker's criminal history. The first paragraphs said this:

> COMES NOW the Defendant, by and through his attorneys and pursuant to Iowa Court Rule 2.11(4) hereby requests the Court enter an order in limine excluding from voir dire examination and opening statements, as well as any reference by the State and/or its witnesses during direct or cross-examination or during closing arguments or any other time in the presence of the jury to the following:
> 1. The Defendant's prior criminal history and any other charges stemming from this incident.
> 2. Any other crimes, wrongs or acts alleged to have been committed by the Defendant.

The Motion set out the Iowa Rules of Evidence numbered 5.402, 5.403, and 5.404(a) and (b) to explain why the aforesaid evidence or references were subject to exclusion. Specifically in regard to Rule 403, the defense asserted "any minimal probative value of any of the above would be greatly outweighed by the substantial

risk that such evidence would be unduly prejudicial". (D0066, 8/16 /23, Defendant's Motion in Limine, pp. 1-2) All of the foregoing content of the first defense Motion in Limine was repeated in the defense Amended Motion in Limine filed a few days before trial commenced. (D0195, 2/28/24, Amended Motion in Limine, pp. 1-2)

Arguments and rulings on the motions in limine proceeded in chambers the first morning of trial before the jury selection process began. In regard to criminal history, Judge McKeever said this:

> All right. So let's turn to the amended Motion in Limine filed by the defense in February of this year. So the first paragraph, I think we've covered. I don't see that there would be a reason to go into defendant's criminal history given the stipulation that's provided and also the guilty plea to the Felon in Possession charge. (D0324, Trial Tr. Vol. 1, p. 24, L. 1-7)

After the State pointed out that Mr. Walker's criminal history may become relevant for impeachment if Defendant chose to take the witness stand, the judge clarified that paragraph 1 of the defense Motion in Limine was granted in regard to the State's case-in-chief. (D0324, Trial Tr. Vol. 1, p. 24, L. 1-24)

After the subsequent voir dire examination of Juror Lucore, defense counsel explained the basis for the Motion to Strike for Cause, and the judge stated his understanding of the Motion:

> DEFENSE COUNSEL: I believe in paragraph 1, possibly paragraph 2 of our Motion in Limine that you granted that the jury is not to know

about any prior convictions on that the defendant may have. He – Mr. Lucore specifically just told us that he knows he pled to a Felon in Possession. That indicates our client is a felon, and now the jury knows about it. So I think he should be stricken for that reason.
****
THE COURT: So I just – I'm just trying to understand, for the record, the legal basis of your motion. Appears to be that one of the prospective jurors has knowledge that I, in My [ruling on the] Motion in Limine, have decided to exclude, and so I think you're saying by extension the fact that this one juror has such knowledge that they should not be permitted to be on the jury.
DEFENSE COUNSEL: Yes, by extension.
THE COURT: Or even be in the pool.

(D0325, 8/27/24, Trial Tr. Vol. 2, p. 41, L. 16-23 , p. 43, L. 1-10)

Judge McKeever first said he was having difficulty with the ruling because he excluded the evidence of criminal history because the information "could be prejudicial, and there's no way to know, if you present evidence to a jury, whether it will or won't be prejudicial". The judge then denied the Motion to Strike because he believed Mr. Lucore stated under oath that he did not think the guilt on Felon in Possession "was related to" the question of guilt on the Going Armed with Intent and Murder charges, and he would not reveal his knowledge of the guilty plea to other prospective jurors. He said he could be fair. (D0325, 8/27/24, Trial Tr. Vol. 2, pp. 43-45, L. 13-1)

The first error in the ruling is that the judge did not grasp the conditional nature of Mr. Lucore's belief that the fact of the guilty plea would not enter into his

decision on whether Mr. Walker was guilty of Going Armed with Intent or Murder. The juror could not promise a total separation of those factors. He said this:

> PROSECUTOR: And do you think you would be able to form a verdict solely on the evidence in the courtroom and be able to set aside what you've previously read about this case?
> POTENTIAL JUROR LUCORE: Yes.
> ****
> PROSECTOR: Okay. So it – you wouldn't say, "I'm going to find him guilty because I know he was a felon in possession"?
> POTENTIAL JUROR LUCORE: No, I wouldn't.
> PROSECUTOR: And you're not going to let that sway your opinion as – in regards to the other charges?
> POTENTIAL JUROR LUCORE: No. I don't believe – I mean, it all depends on what's presented in front of me, you know, but I'm – at this point in time, no.

(D0325, Tr. Vol. 2, p. 38, L. 2-6, pp. 38-39, L. 25-8) (emphasis added)

That qualifier Mr. Lucore put on his ability to keep the newspaper headline separate from the evidence at trial is critical to Judge McKeever's misunderstanding of the facts and the erroneous application of law in denying the motion. The separation of the two sources of information was the core reason the judge stated for his ruling:

> In this particular case, we asked the person directly under oath, and he said he didn't think that one was related to the other at all and that the State was going to have to prove its case in this particular case. So I guess at this point, I'm going to – he also said that he would not reveal this information to the other jurors.

(D0325, Tr. Vol. 2, p. 43, L. 18-23)

The judge's admitted struggle with his ruling on the Motion to Strike for Cause was because his ruling on the Motion in Limine to exclude evidence of criminal history was based on the fact that such evidence "could be prejudicial, and there's no way to know, if you present evidence to a jury, whether it will or won't be prejudicial". In fact, that is exactly what Juror Lucore said on voir dire when he said his ability to separate the newspaper headline from the evidence "all depends on what's presented in front of me". Also, that is the reason evidence and references are excluded under Rule 5.403: "The court may exclude relevant evidence if its probative value is substantially outweighed by a danger of one or more of the following: unfair prejudice, confusing the issues, misleading the jury . . ." (emphasis added) Information is not excluded because it is proven it will be unfairly prejudicial, misleading or confusing, but because there is that danger that it will be.

Why did Judge McKeever take the risk of a ruling that might be technically right, but wrong as a matter of fairness? Why would the judge make the defense use a peremptory strike on a juror who has been so clearly tainted in light of the ruling on the Motion in Limine? The judge did not have to find the newspaper headline would be unfairly prejudicial. He only had to find there was a danger it would be. The juror told him there was a danger of that when he said his use of the media information depended on what evidence was put in front of him in the trial.

The judge did not have to decide what was technically right in making a ruling. He needed to follow this Court's instruction telling him that the proper exercise of discretion is in a ruling that does not invite a clear risk of unfairness.

"[W]e see no occasion in the ordinary administration of the criminal law in this state for the close rulings on the qualifications of jurors that are constantly brought to our attention. Although a ruling may be technically right, if it must be so doubtful as to raise a fair question as to its correctness, it is far better to give the accused the benefit of the doubt, to the end that he and all other men may be satisfied that his rights have not been invaded . . . it should not be necessary for trial courts to skirt the brink of error in the selection of trial jurors". *Jonas*, 904 N.W.2d at 575 "Indeed, it is of such paramount importance to every citizen that the time and expense necessary to secure jurors as to whom no doubt may rightly exist is an insignificant consideration." *Beckwith*, 46 N.W.2d at 26, quoted in *Jonas*, *Id.*

Also, the judge's ruling on this juror was again untenable. The juror could not say he would be fair and impartial by excluding his knowledge from the media report. He said it would depend on what evidence was put in front of him in the courtroom.

The trial judge abused discretion in overruling the Motion to Strike potential jurors, Lucore and Wilson, and with the application of the presumption of

prejudice that was properly preserved, the Court must reverse the convictions for a new trial on either of the rulings, or on both.

II. THE TRIAL COURT ERRED BY REFUSING TO SUBMIT A PROPOSED JURY INSTRUCTION THAT WAS SUPPORTED BY COMMON LAW AND WAS NOT EXPLAINED IN OTHER INSTRUCTIONS, AND THE INSTRUCTION WAS REQUIRED TO BE SUBMITTED.

Preservation of Error: The defense filed its Statement of the Case and Proposed Jury Instructions a little less than a month before the trial commenced. In addition to a standard Justification defense, Mr. Walker was also requesting an instruction for a defense that has been referred to in case law as an Imperfect Self-Defense. On that special defense, the Defendant requested this instruction:

> If you find that in the Defendant's mind the danger was actual, real, imminent or unavoidable; however, find that a reasonable person would not have believed there to be such a danger, then the Defendant did not act with malice as defined in Instruction No. ____.
> Authority: *Rinehart v. Brewer*, 561 F.2d 126 (8th Cir. 1977) *In Re: Christian S.*, 872 P.2d 574 (Cal. 1994) [Contrary authority – *State v. Cusic*, [sic] 900 N.W.2d 616 (Iowa Ct. App. 2017)(unpublished)]

(D0184, 2/11/24, Proposed Instructions, p. 47)

In the jury instruction conference after all the evidence had been submitted at trial, the judge first heard arguments on three issues where the State and the defense stated they were in disagreement, and he first asked the prosecutor to identify and argue the three propositions at issue.

The State opposed the instruction proposed by the defense with this argument by arguing that the proposed special defense instruction is "contrary to" the justification Instruction provided by the Uniform Jury Instructions. The prosecutor added that Iowa "does not recognize the imperfect self-defense" and it "would be improper and a misstatement of the law to provide this instruction to the jury". (D0326, 8/27/24, Trial Tr. Vol. 6, p. 11, L. 6-13)

In response, defense counsel urged Judge McKeever to submit the instruction to the jury. Counsel countered that it is not contrary to the standard Justification instruction that the judge was going to give to the jury. It merely allows the jury to consider and apply the facts as to what Mr. Walker believed, which is relevant to the question of malice. Defense counsel told the judge the proposed instruction reflected "the state of the law" and had been recognized by the Eighth Circuit. It should be given to the jury. (D0326, 8/27/24, Trial Tr. Vol. 6, pp. 13-14, L. 10-9)

The judge first heard arguments on three issues where the State and the defense stated they were in disagreement, and he first asked the prosecutor to identify and argue the three propositions at issue. The prosecutor first addressed the defense request that the court remove the uniform instruction for out-of-court statements previously made by the Defendant. The second instruction the prosecutor identified as in controversy was in regard to "the justification

instruction [at] page 46." Third, the prosecutor addressed the verdict form and argued for the "Guilty" option to remain as the first option for a verdict. The prosecutor then circled back to the second issue on the Justification instruction, arguing that the defense proposed instruction on the so-called Imperfect Self-Defense should not be submitted to the jury and the Stand Your Ground instruction should be removed. (D0326, 8/27/24, Trial Tr. Vol. 6, pp. 8-11, L. 6-19). Defense counsel then argued the instructions in controversy in the same order, i.e. Defendant's previous statements, then the Justification issues, and finally the verdict form. (D0326, Tr. Vol 6, pp. 11-14, L. 21-21) It was on the second topic of Justification that counsel advocated for the proposed instruction on Imperfect Self-Defense and cited *Rinehart* vs. Brewer, 561 F.2d 126 (8th Cir. 1977).

Judge McKeever then said he was going to rule on those arguments on the instructions "in the order they were presented". He first approved using the uniform instruction for Defendant's previous statements. Next, he approved using the uniform Justification instruction. The judge stated he would remove the Stand Your Ground instruction at "page 49" due to a stipulation between the parties, and he said he would deny and remove the proposed Imperfect Self-Defense instruction. He did so in this less than fully specific way:

> And page 50 is – is very confusing, and I don't think it adds anything to the definitions that we have given to the jury. We've given the jury a full definition of self-defense, and – or rather justification, and this

instruction, I think, is just confusing. So I'm going to take it out. (D0326, Tr. Vol 6, p. 21, L. 14-19)

The judge then went on to deny the defense argument on the third issue concerning the verdict form. The full pronouncement of the rulings on these three issues is found at D0326, Tr. Vol 6, pp. 17-22 , L. 9-14. The judge did not specifically say that the "page 50" he was removing was the defense proposed instruction, but the totality of the record is clear that counsel for both parties understood the judge was removing the proposed Imperfect Self-Defense instruction and denying the defense motion. The judge identified the page 49 that he removed as the one-page uniform Stand Your Ground justification instruction. In the official jury instructions that were then submitted to the jury, pages 47- 48 are the uniform Justification instruction, and pages 49-51 are instructions that explain and clarify the Justification instruction. "[W]e recognize an exception to the general error-preservation rule when the record indicates that the grounds for a motion were obvious and understood by the trial court and counsel." *State v. Williams*, 695 N.W.2d 23, 27-28 (Iowa 2005) The ruling regarding a defense request is preserved for review on appeal when the issue was clear to the prosecution at trial and "where a question is obvious and ruled upon by the district court". *State v. Paredes*, 775 N.W.2d 554, 561 (Iowa 2009) (D0278, 3/13/24, Jury Instructions, pp. 47-51)

Standard of Review: "'Iowa law requires a court to give a requested jury instruction if it correctly states the applicable law and is not embodied in other instructions.' (quoting *Sonnek v. Warren*, 522 N.W.2d 45, 47 (Iowa 1994). An issue is material if it is outcome determinative." *State v. Plain*, 898 N.W.2d 801, 816 (Iowa 2017) A trial court's refusal to give a requested and "required" instruction is reviewed for correction of errors at law. *Alcala v. Marriott International*, 880 N.W.2d 699, 707-708 (Iowa 2016) "In doing so, we consider the jury instructions as a whole rather than in isolation to determine whether they correctly state the law." *State v. Benson*, 919 N.W.2d 237, 242 (Iowa 2017)

The Merits

The title of Imperfect Self-Defense is something of a misnomer. In the scheme of our statutory framework for Justification the label is bound to cause some confusion. And it has. The confusion is grounded in the fact that the Justification defense completely exonerates a person from any punishment for criminal liability if and when a trier of fact determines a defendant's acts were justified. . The statutory bedrock of that defense is grounded in Section 704.3, Code of Iowa: "A person is justified in the use of reasonable force when the person reasonably believes that such force is necessary to defend oneself or another from any actual or imminent use of unlawful force." That one-sentence code section is

titled: “Defense of self or another”. Sections 704.1 through 704.2(b) and 1.704.4 define “reasonable force” and set out the parameters of the circumstances under which the use of reasonable force is justified. The standard of reasonableness inherent in the statutes invokes the consideration of judging actions the defendant took at the time in question for a decision of whether he or she acted as a reasonable person would be expected to act in the circumstances. Those statutes are embodied in the Justification by Self-Defense instructions that the jury in the instant case received that are numbered 45 to 48. The core instruction on Justification was given to the jury in Instruction No. 45. (D0278, 3/13/24, Jury Instructions, pp. 47-51)

The doctrine known as Imperfect Self-Defense does not depend upon the surrounding circumstances in which the reasonable use of force could exonerate a defendant from all criminal liability. The doctrine does not focus on the reasonableness of physical actions a defendant has taken, or has not taken. The focus is on the defendant’s state of mind for the determination as to whether a defendant acted with malice. The California Supreme Court described the doctrine in this way:

> Under the doctrine of imperfect self-defense, when the trier of fact finds that a defendant killed another person because the defendant actually but unreasonably, believed he was in imminent danger of death or great bodily injury, the defendant is deemed to have acted without malice and thus can be convicted of no crime greater than

> voluntary manslaughter. The question is whether the Legislature abrogated this doctrine in 1981 by amending the Penal Code to eliminate the diminished capacity defense. We hold the doctrine of imperfect self-defense was not abolished.
> *In Re: Christian S.*, 872 P.2d 574, 575 (Cal. 1994) (emphasis supplied)

The same is true under Iowa law. If a jury in a murder prosecution finds a defendant acted without malice, the defendant cannot be found guilty of First Degree or Second Degree Murder under Section 707.1, the Code. That section defines Murder as a killing with malice aforethought. (D0278, 3/13/24, Jury Instructions, No's. 19 and 27, pp. 21, 27) The Imperfect Self-Defense is not "contrary to" the Iowa statutory construct of the Justification defense. It is just significantly different from that statutory defense.

The proposed jury instruction includes direction to Instruction No. 20 that actually was submitted to the jury. That instruction defines "Malice":

> INSTRUCTION NO. 20 (As given)
> "Malice" is a state of mind which leads one to intentionally do a wrongful act to the injury of another or in disregard of the rights of another out of actual hatred or with an evil or unlawful purpose. It may be established by evidence of actual hatred, or by proof of a deliberate or fixed intent to do injury. It may be found from the acts and conduct of Mr. Walker and the means used in doing the wrongful and injurious act. Malice requires only such deliberation that would make a person appreciate and understand the nature of the act and its consequences, as distinguished from an act done in the heat of passion.
> "Malice aforethought" is a fixed purpose or design to do some physical harm to another which exists before the act is committed. It does not have to exist for any particular length of time.

(D0278, 3/13/24, Jury Instructions, p. 22) (D0184, 2/11/24, Proposed Instructions, p. 47)

The law of Imperfect Self-Defense integrates with the instructions that were submitted to the jury in other ways also. The prosecutor's objection to Mr. Walker's request to submit the proposed instruction was based on an argument that the proposal is contrary to the Justification instruction and that an unpublished Iowa Court of Appeals decision stated that the special defense doctrine should not be given to the jury:

> THE PROSECUTOR: This is actually contrary to the justification of the model instruction that is given to the jury and that has been time-tested and, in fact, the holding in State v. Cusick [sic] is that that instruction should not be given, and so in – the State of Iowa does not recognize the Imperfect self-defense. Obviously, other states have. Iowa does not, and that's the ruling in State v. Cusick [sic]. So that would be improper and a misstatement of the law to provide this instruction to the jury.

(D0326, 8/27/24, Trial Tr. Vol. 6, p. 11, L. 6-11)

First of all, the Imperfect Self-Defense instruction is not "contrary to the justification of the model instruction that is given to the jury". In fact, it dovetails perfectly with the Justification instruction. The jury can first judge a defendant's actions to determine whether they believe that a reasonable person would have taken the action to defend himself from death or injury. The uniform Justification

instruction Mr. Walker's jury received was No. 45. In pertinent part, the instruction says this:

> Mr. Walker was justified in using reasonable force if he reasonably believed that such force was necessary to defend himself or another from any actual or imminent use of unlawful force, or prevent or terminate the commission of a forcible felony that he reasonably believed was being or would be imminently perpetrated by Cameron Barnes.
> ****
> Reasonable force is only the amount of force a reasonable person would find necessary to use under the circumstances to prevent death, injury, completion of forcible felony. If in Mr. Walker's mind the danger, need to use force to prevent a forcible felony was actual, real, imminent, or unavoidable, even if he was wrong in estimating it or the force necessary to repel it, the force was justified if he had a reasonable basis for his belief and responded reasonably to that belief. It is not necessary that there was actual danger, but Mr. Walker must have acted in an honest and sincere belief that the danger actually existed. Apparent danger with Mr. Walker's knowledge that no real danger existed is no excuse for using force.

(D0278, 3/13/24, Jury Instructions, pp. 47-48)

As mentioned, a finding that Mr. Walker "reasonably" believed he was acting to protect himself from injury or death could have led to a verdict of not guilty on the Murder and lesser included assault charges, depending on whether the jury would find the force he used was reasonable force. A finding of guilt on any of those charges required the jury to find beyond a reasonable doubt that Mr. Walker did not act reasonably to defend himself. Lack of Justification is an element of proof. If the jury has no reasonable doubt that Mr. Walker's actions

were unjustified, then the Imperfect Self-Defense provides the next logical step. The jury could go on to determine whether Mr. Walker actually believed the steps he took were reasonable and necessary to his self-defense, even though they were not objectively reasonable. The jury was given Instructions 46, 47, and 48 to guide their interpretation and deliberation under the Justification defense in Instruction No. 45. (D0278, 3/13/24, Jury Instructions, pp. 47-51)

The jury decided the Justification instruction for self-defense did not excuse Mr. Walker's actions. The proposed instruction uses the same wording as the Justification instruction to guide the jury's next question for deliberation. Did Mr. Walker actually believe the action he took was "necessary to use under the circumstances to prevent death, injury, completion of forcible felony" to himself, even though it was not reasonable to believe that ? If the jury would find that he actually believed he needed to defend himself the way he did, then the jury would be directed to find "the Defendant did not act with malice as defined in Instruction No. 20".

The prosecutor's argument that *Cusic* held the proposed instruction should not be given because it is a "a misstatement of the law to provide this instruction to the jury" is not quite accurate. The *Cusic* decision simply said the Imperfect Self-Defense Doctrine had never been recognized in Iowa, and the trial court "was under no obligation to submit the theory to the jury". 2017 WL 1278293, at 3. For

that conclusion, the *Cusic* panel quoted *State v. Gomez-Rodriguez*, 2007 WL 1688987 for its view that "the doctrine … plainly conflicts with Iowa statutory law". The *Gomez-Rodriguez* panel reached its conclusion in this way:

> While a valid defense in some jurisdictions, the doctrine of imperfect self-defense has not been adopted in Iowa. Moreover, the doctrine has been expressly rejected in several other states . . . We believe the doctrine also plainly conflicts with Iowa statutory law. Iowa Code section 704.3 provides that "[a] person is justified in the use of reasonable force when the person reasonably believes that such force is necessary to defend oneself or another from any imminent use of unlawful force." (emphasis added). In essence, Gomez-Rodriguez is asking us to judicially create a new non-statutory defense. *Gomez-Rodriguez*, 2007 WL 1688987, at 3

The *Cusic* and *Gomez* three-judge decisions were both based on the incorrect rationale that the Imperfect Self-Defense is contrary to the Justification defense created in Iowa statutes under Section 704.3, the Code. The decisions do not recognize that the proposed doctrine is not contrary to Iowa statutory law because it provides a path for mitigation of culpability that is fundamentally different from Justification. It is not a reasonable person standard that fully excuses a defendant from criminal liability. The doctrine focuses on the particular defendant's state of mind to allow a jury to negate an element of Murder. Its operation is quite similar to the way the diminished responsibility doctrine provides a path to negating specific intent. It can reduce liability, but not completely negate criminal liability,

by focusing the jury on the statutory element of specific intent. The Imperfect Self-Defense Doctrine focuses the jury on the statutory element of malice aforethought.

The Imperfect Self-Defense Doctrine is also similar to the diminished responsibility defense in that it is also a creature of the common law:

> The diminished responsibility defense was first recognized by this court in *State v. Gramenz*, 256 Iowa 134, 126 N.W.2d 285 (1964). It is a common law doctrine that "permits proof of defendant's mental condition on the issue of [the defendant's] capacity to form a specific intent in those instances in which the state must prove defendant's specific intent as an element of the crime charged."
> ****
> In view of the fact the Iowa common law recognized mental impairment other than legal insanity as a defense only to specific intent crimes at the time the insanity defense was codified, we believe the General Assembly drew the line at that point. The legislature thus established the applicable legal standard for deciding culpability upon evidence of mental impairment in cases requiring proof only of guilty knowledge or general criminal intent accompanying a prohibited act. The mens rea of those crimes is not affected by evidence of mental impairment that does not meet the insanity standard. Therefore we hold that the diminished responsibility defense is available only to specific intent crimes.
> *State v. McVey*, 376 N.W.2d 585, 586, 587 (Iowa 1985)

The proposed common law doctrine for Imperfect Self-Defense is to Justification as diminished responsibility is to insanity. It does not negate culpability, but only reduces it. It is a common law doctrine that is not contrary to statutory law. It is just different from the statutory law. The statutory and common law can co-exist. The analogy should not be confused by the *McVey* court's

reference to diminished responsibility doctrine pre existing in Iowa common law when the legislature codified the insanity defense. The point was only made in reference to analyzing the legislative intent when the insanity defense was codified. The legislation did not change the limitation of the diminished responsibility to the element of specific intent. The point was not it was Iowa common law, but only that it was common law that was not contrary to the statutory law. Accordingly, in *Rinehart v. Brewer*, 561 F.2d 126, 132 (8th Cir. 1977), the federal appellate panel found that a lawyer representing a defendant on a state charge for murder in Iowa should have explored a trial defense based on the Imperfect Self-Defense Doctrine, even though this court had never addressed that common law doctrine.

The *Gomez-Rodriguez* issue concerning the proposed doctrine was also raised on a question of ineffective assistance of counsel question as to whether the common law defense that has been unaddressed by this Court was "worth raising". The panel in that case first erred on that analysis because it misunderstood the separate nature of the doctrine and decided it "conflicts with Iowa statutory law". Then, the panel found there would be no prejudice even if counsel could have used the defense. The panel incorrectly treated the doctrine in the framework of Justification in reaching that conclusion. *Gomez-Rodriguez*, 2007 WL 1688987, at

3

In *State v. Irving*, 2015 WL 5965171 at 7 (Iowa App. 2015), a panel of three judges pointed to the decision in *Gomez*- Rodriguez and noted the legislature had not amended the Justification statute, Section 704.3. The panel concluded the legislature's silence in ongoing approval of 704.3 indicated "tacit approval" of the *Gomez*- Rodriguez decision. That reasoning was flawed for two reasons. First, the legislature would not fail to act in order to lend tacit approval to an unpublished decision that is not considered as legal authority. Second, the Imperfect Self-Defense Doctrine is not directed at whether a defendant was justified in his actions taken. It is a concept that requires a jury to consider whether a defendant's state of mind disproves the element of malice. A statute that would approve the proposed doctrine would not have a place in Section 704.3.

In *Gomez-Rodriguez* and *Irving*, the panels pointed out that the Imperfect Self-Defense Doctrine is a valid defense in the highest courts of some states, but not others. Reference was made to approval in the appellate courts in Kansas and California and the highest courts in Rhode Island and Maryland. *Irving*, *Id.* at 6, quoting *Gomez-Rodriguez*. Mr. Walker's proposed instruction cited approval from the highest court in California with *In re Christian S.*, 872 P.2d 574 (Cal. 1994). (D0184, 2/11/24, Proposed Instructions, p. 47) The proposed instruction was supported in the common law and has not been rejected by any published legal

authority in Iowa. The trial court was "required" to submit the proposed instruction to the jury. *State v. Plain*, 898 N.W.2d 801, 816 (Iowa 2017)

This Court must now address the Doctrine and conclude the proposed instruction should have been submitted to the jury in Mr. Walker's trial. His conviction for Murder in the First Degree must be reversed for a new trial.

CONCLUSION

The Court should reverse both convictions on the trial court's failure to grant the defense Motions to Strike for Cause one or both of the jurors. Failing that, the Court must reverse the conviction for Murder in the First Degree for the judge's failure to submit the proposed jury instruction to provide the jury an opportunity to consider the Imperfect Self-Defense Doctrine.

REQUEST FOR ORAL ARGUMENT

Pursuant to Rule 6.908(1), Appellant requests to be heard in oral argument.

/s/ Kent A. Simmons
Kent A. Simmons
PO Box 594
Bettendorf, IA 52722
(563) 322-7784
ttswlaw@gmail.com